

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Plaintiffs designate
Kings County as the
place of trial

----- X
L. P-J, an infant by her mother and natural guardian
DANIELLE PACIFIC, and DANIELLE PACIFIC,
Individually,

Plaintiffs,

Basis of venue is
county of occurrence

-against-

AMENDED SUMMONS

THE CITY OF NEW YORK,
NYPD OFFICER CHANEL GRENADE, a/k/a
CHANEL GOMEZ, and NYPD OFFICER
GOLDY FELIX, NYPD SGT. GARY MARCHAND and
NYPD SGT. CARLO CHU,

Index No. 521429/18

Defendants.

----- X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
January 26, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiffs
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

To:

-The City of New York, 100 Church Street, New York, NY 10007

-NYPD Officer Chanel Grenade, a/k/a Chanel Gomez, c/o NYPD 70th Pct., 154 Lawrence Ave, Brooklyn, NY 11230

-NYPD Officer Goldy Felix, c/o NYPD 70th Precinct, 154 Lawrence Ave, Brooklyn, NY 11230

-NYPD Sergeant Gary Marchand, c/o NYPD 70th Pct., 154 Lawrence Ave, Brooklyn, NY 11230

-NYPD Sergeant Carlo Chu, c/o NYPD 70th Pct., 154 Lawrence Ave, Brooklyn, NY 11230

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

L. P-J, an infant by her mother and natural guardian
DANIELLE PACIFIC, and DANIELLE PACIFIC,
Individually,

Plaintiffs,

-against-

AMENDED
VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD OFFICER CHANEL GRENADE, a/k/a
CHANEL GOMEZ, and NYPD OFFICER
GOLDY FELIX, NYPD SGT. GARY MARCHAND and
NYPD SGT. CARLO CHU,

Index No. 521429/18

Defendants.

----- X

Plaintiffs, by their attorneys Sivin, Miller & Roche, LLP, complaining of
defendants, allege as follows, upon information and belief:

THE DEFENDANTS

1. That at all times herein mentioned, defendant The City of New York
(hereinafter "the City") was and is a municipal corporation, organized and existing under and by
virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the
dates when the causes of action accrued herein, a notice of claim and intention to sue was duly
served upon and filed with the defendants on behalf of plaintiffs; that this action was not
commenced until the expiration of thirty (30) days after such notice of claim and intention to sue
was presented and defendants have neglected and/or refused to make adjustment or payment
thereon, and this action is being commenced within one year and ninety days after the causes of
action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, and maintained a police force known as the New York Police Department (hereinafter "the NYPD").

4. That at all times herein mentioned, defendant NYPD Officer Chanel Grenade, a/k/a Chanel Gomez (hereinafter "Grenade") was and is employed as an officer with the NYPD.

5. That at all times herein mentioned, Grenade was acting within the course and scope of her employment as an officer with the NYPD.

6. That at all times herein mentioned, Grenade was acting under color of state law.

7. That at all times herein mentioned, defendant NYPD Officer Goldy Felix (hereinafter "Felix") was and is employed as an officer with the NYPD.

8. That at all times herein mentioned, Felix was acting within the course and scope of her employment as an officer with the NYPD.

9. That at all times herein mentioned, Felix was acting under color of state law.

10. That at all times herein mentioned, defendant NYPD Sgt. Gary Marchand (hereinafter "Marchand") was and is employed as a sergeant with the NYPD.

11. That at all times herein mentioned, Marchand was acting within the course and scope of his employment as an officer with the NYPD.

12. That at all times herein mentioned, Marchand was acting under color of state law.

13. That at all times herein mentioned, defendant NYPD Sgt. Carlo Chu (hereinafter "Chu") was and is employed as a sergeant with the NYPD.

14. That at all times herein mentioned, Chu was acting within the course and scope of his employment as a sergeant with the NYPD.

15. That at all times herein mentioned, Chu was acting under color of state law.

16. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

FACTS

17. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

18. That at all times herein mentioned, L. P-J was a student at Midwood High School, in Brooklyn, NY.

19. That on March 20, 2018, when L. P-J was attending and on the premises of Midwood High School, she was physically ill and was granted permission by the school and by her mother, plaintiff Danielle Pacific (hereinafter "Pacific") to leave the premises and go home so that she could tend to her physical condition.

20. That on March 20, 2018, while L. P-J was walking en route from school to her home, she was physically stopped, questioned, and seized by Grenade and Felix (hereinafter "the officers") without probable cause or reasonable suspicion to believe that she committed or was about to commit any crime or violation, and without other justification.

21. That upon stopping and seizing L. P-J, the officers ignored her statements and explanations (and those of her mother, Danielle Pacific, with whom the officers were in contact via L. P-J's cell phone) that L. P-J was feeling ill and was en route to her home with the permission of her mother and the school.

22. That in response to L. P-J's protestations, the officers forcibly grabbed L. P-J, pulled her hair, placed her in handcuffs, and otherwise used force against her that was excessive, unnecessary, and unjustified under the circumstances.

23. That the officers then arrested and imprisoned L. P-J without a warrant and without probable cause or reasonable suspicion, and kept her confined at various locations, including inside a police vehicle and at a police precinct.

24. That while in the police precinct, the officers kept L. P-J handcuffed to a pole for approximately seven hours.

25. That the handcuffs that were placed on L. P-J by the officers were so tight that they caused physical pain and bruising to L. P-J.

26. That L. P-J requested that the officers remove and/or loosen her handcuffs, but her requests were refused, causing her to sustain additional pain and suffering.

27. That while L. P-J was in the precinct, her mother, Danielle Pacific (hereinafter "Pacific"), arrived at the precinct, explained the facts and circumstances under which her daughter left the school premises, and inquired into the facts and circumstances surrounding her daughter's detention.

28. That after Pacific did not receive satisfactory responses from the officers and others at the precinct to her inquiries about her daughter's detention, Pacific verbally protested the treatment that she and L. P-J were receiving, and she stated to the officers and others at the precinct that she would be filing complaints with governmental and other agencies and officials to seek redress for the officers' actions.

29. That on March 20, 2018, the officers initiated a prosecution against L. P-J by issuing and filing an Appearance Ticket that required her to appear in Family Court to answer various charges of crimes or other misconduct that the officers alleged L. P-J had committed.

30. That L. P-J had not engaged in any of the crimes or other misconduct alleged, and the officers knew that L. P-J had not engaged in any of those crimes and did not have

probable cause to believe that L. P-J had engaged in any of those crimes, or that any such prosecution would succeed.

31. That in support of the prosecution, the officers made statements to the Family Court, the Department of Probation, and others that were false and that they knew were false, including that L. P-J was engaged in unlawful activity when they encountered her and that she physically resisted their attempts to question her and to arrest her.

32. That in support of the prosecution, Felix also executed an accusatory document in which she made accusations against L. P-J that she knew were false, including that L. P-J was engaged in unlawful activity when the officers encountered her and that L. P-J physically resisted the officers' attempts to question her and to arrest her.

33. That the aforementioned false statements and fabrications by the officers constituted material evidence in the prosecution of L. P-J, and evidence that was likely to influence a decision on L. P-J's guilt or innocence.

34. That the aforesaid prosecution by the officers was initiated with malice.

35. That the aforesaid prosecution by the officers was initiated in retribution for L. P-J and Pacific having exercised their First Amendment rights of free speech and their First Amendment rights to petition the government for redress of grievances.

36. That as a result of the aforesaid prosecution, L. P-J was required to appear in Family Court on more than one occasion, and was otherwise restricted in her liberty and travel.

37. That on or about March 30, 2018, all of the charges against L. P-J were dismissed, and the proceeding that was commenced by the officers terminated favorably to L. P-J.

38. That at all times herein mentioned, Grenade and Felix observed each other's illegal and unconstitutional conduct, had reasonable opportunities to intervene to prevent and/or stop that illegal and unconstitutional conduct, and willfully failed and refused to do so.

39. That the aforesaid actions by Grenade and Felix were done intentionally and maliciously.

40. That as a result of the aforementioned actions by the officers, L. P-J sustained physical and psychological injuries, endured and will continue to endure pain and suffering and loss of enjoyment of life, was deprived of her liberty and freedom, was damaged in her reputation, and has been otherwise damaged.

41. That as a result of the aforementioned actions by the officers, Pacific sustained psychological injuries, endured and will continue to endure emotional pain and suffering and loss of enjoyment of life, and has been otherwise damaged.

42. That upon information and belief, prior to the events alleged herein Grenade and Felix had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

43. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Grenade and Felix had used excessive force against and had falsely arrested, falsely imprisoned, maliciously prosecuted, and otherwise abused their authority against individuals while in the course and scope of their employment with the NYPD.

44. That upon information and belief, prior to the events alleged herein the City and the NYPD knew that Grenade and Felix were unfit to act as police officers.

45. That despite the City's and the NYPD's prior knowledge of Grenade's and Felix's unfitness and propensities, the City and the NYPD knowingly retained Grenade and Felix

as NYPD officers, thereby subjecting plaintiffs to Grenade's and Felix's improper, illegal, and unconstitutional conduct.

46. That after Grenade took plaintiff into custody, Grenade was responsible for and participated in the processing of L. P-J's arrest.

47. That after Felix took plaintiff into custody, Felix was responsible for and participated in the processing of L. P-J's arrest.

48. That on March 20, 2018, Marchand was a sergeant at the police precinct at which L. P-J was taken and in which L. P-J was incarcerated.

49. That at all times herein mentioned, Marchand observed L. P-J being taken into custody, and was responsible for, participated in, and supervised the processing of L. P-J's arrest.

50. That on March 20, 2018, Chu was a sergeant at the police precinct at which L. P-J was taken and in which L. P-J was incarcerated.

51. That at all times herein mentioned, Chu observed L. P-J being taken into custody, and was responsible for, participated in, and supervised the processing of L. P-J's arrest.

52. That Grenade, Felix, Marchand, and Chu, without justification, delayed the processing of plaintiff's arrest.

53. That Grenade, Felix, Marchand, and Chu, without justification, caused and/or allowed L. P-J's arrest to be delayed.

54. That as a result of the actions of Grenade, Felix, Marchand, and Chu in delaying the process of L. P-J's arrest, L. P-J was improperly held in custody for approximately ten hours.

55. That the delay in the processing of L. P-J's arrest, and the holding of L. P-J in custody for nearly ten hours, was a direct violation of the Juvenile Justice and Delinquency

Prevention Act, 34 U.S.C. §11133(a)(13)(A), which prohibits the detention or confinement of any minor in an adult jail or lockup for a period in excess of six hours.

56. That the actions of Grenade, Felix, Marchand, and Chu in causing and/or allowing a delay in the processing of L. P-J's arrest and keeping L. P-J in custody in an adult jail were intentional and malicious in nature, and caused plaintiffs to sustain additional injuries.

57. That the actions of Grenade, Felix, Marchand, and Chu in causing and/or allowing a delay in the processing of L. P-J's arrest and keeping L. P-J in custody in an adult jail were undertaken in retaliation for plaintiffs' having exercised their First Amendment rights of free speech and to petition the government for redress of grievances.

FIRST CAUSE OF ACTION BY L. P-J AGAINST THE CITY and THE OFFICERS
(Assault and Battery Under NY State Law)

58. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

59. That the aforesaid actions of the officers constitute an assault and battery of L. P-J, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION BY L. P-J AGAINST THE CITY and THE OFFICERS
(False Arrest/False Imprisonment Under NY State Law)

60. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

61. That the aforesaid actions of the officers constitute a false arrest and false imprisonment of L. P-J, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION BY L. P-J AGAINST THE CITY and THE OFFICERS**(Malicious Prosecution Under NY State Law)**

62. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

63. That the aforesaid actions of the officers constitute a malicious prosecution of L. P-J, for which the officers are liable under New York law and for which the City is vicariously liable under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION BY L. P-J. AGAINST THE OFFICERS**(42 U.S.C. § 1983: Illegal Seizure and Excessive Force)**

64. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

65. That the aforesaid actions by the officers in forcibly stopping, seizing, and using excessive force against L. P-J constitute unreasonable and illegal seizures of L. P-J in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

FIFTH CAUSE OF ACTION BY L. P-J. AGAINST THE OFFICERS**(42 U.S.C. § 1983: False Arrest/Imprisonment)**

66. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

67. That the aforesaid actions by the officers in arresting and imprisoning L. P-J without probable cause constitute unreasonable and illegal seizures of L. P-J in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of

equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SIXTH CAUSE OF ACTION BY L. P-J. AGAINST THE OFFICERS

(42 U.S.C. § 1983: Malicious Prosecution)

68. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

69. That the aforesaid actions by the officers in prosecuting L. P-J without probable cause to believe that she had committed any crime or criminal violation, and without probable cause to believe that they could prevail in any prosecution against L. P-J., constitute unreasonable and illegal seizures of L. P-J in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, and a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

SEVENTH CAUSE OF ACTION BY L. P-J AGAINST THE OFFICERS

(42 U.S.C. § 1983: Denial of Right to Fair Trial)

70. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

71. That the aforesaid actions by the officers in making false statements and accusations against L. P-J constitute a denial of L P-J's right to a fair trial, in violation of L. P-J's rights under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION BY L. P-J and PACIFIC AGAINST THE OFFICERS

(42 USC § 1983: Violation of First Amendment)

72. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

73. That the aforesaid actions by the officers in using excessive force against, arresting, imprisoning, and prosecuting L. P-J in retaliation for L. P.J.'s and Pacific's exercise of their right to free speech and their right to seek redress for grievances constituted a violation of plaintiffs' rights under the First Amendment, and entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

**NINTH CAUSE OF ACTION BY L. P-J and PACIFIC AGAINST THE OFFICERS and
THE SERGEANTS**

(42 USC § 1983: Failure to Intervene)

74. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

75. That the aforesaid actions by the officers and the sergeants in willfully failing to intervene to stop and/or prevent the illegal and unconstitutional conduct of their fellow officers and sergeants constitute violations of those same rights that were violated by their fellow officers and sergeants, and entitle plaintiffs to recover monetary damages under 42 U.S.C. § 1983.

TENTH CAUSE OF ACTION BY L. P-J and PACIFIC AGAINST THE OFFICERS

(Negligent Hiring, Training, and Retention)

76. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

77. That the aforesaid actions by the officers and the resulting injuries to plaintiffs followed and were the result of the negligence of the City in its hiring, training, and retention of the officers.

ELEVENTH CAUSE OF ACTION BY L. P-J and PACIFIC AGAINST THE OFFICERS
(Monell Claim: Deliberate Indifference)

78. Plaintiffs repeat and reallege each and every allegation set forth above as though fully set forth at length herein.

79. That the aforesaid actions by the officers and the resulting injuries to plaintiffs followed and were the result of a deliberate indifference by the City and the NYPD to an ongoing pattern of conduct by the officers in which the officers violated the constitutional rights of citizens of the State of New York.

80. That by virtue of the foregoing, plaintiffs are entitled to recover monetary damages from the City under 42 U.S.C. § 1983, pursuant to *Monell v. Dep't of Social Servs. Of N.Y.C.*, 436 U.S. 658.

TWELFTH CAUSE OF ACTION BY L. P-J. AGAINST THE OFFICERS AND THE
SERGEANTS

(42 U.S.C. § 1983: False Imprisonment Based on Delay in Processing Arrest and Release from Custody)

81. Plaintiffs repeat and reallege each and every allegation contained above as though fully set forth at length herein.

82. That the aforesaid actions by the officers in intentionally causing and/or allowing the processing of L. P-J's arrest to be delayed, and in causing and/or allowing L. P-J to remain in custody in excessive of six hours, constitute unreasonable and illegal seizures of L. P-J in violation of the proscription against unreasonable searches and seizures contained in the Fourth Amendment to the U.S. Constitution, a denial of liberty of plaintiff without due process of law, a denial of equal protection to plaintiff in violation of the Fourteenth Amendment to the

U.S. Constitution, and a violation of plaintiffs' rights under the First Amendment, and entitle plaintiff to recover damages pursuant to 42 U.S.C. § 1983.

WHEREFORE, plaintiffs demand judgment against defendants, and each of them, on the foregoing causes of action in the form of compensatory damages in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiffs also demand punitive damages against the officers and the sergeants in amounts that exceed the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and plaintiffs also demand attorney's fees against defendants pursuant to 42 USC § 1988, and the costs and disbursements of this action.

Dated: New York, New York
January 26, 2021

Yours, etc.
SIVIN, MILLER & ROCHE, LLP

By Edward Sivin
Edward Sivin
Attorneys for Plaintiffs
20 Vesey Street, Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing amended complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
January 26, 2021



EDWARD SIVIN